

**BEFORE THE
FEDERAL MARITIME COMMISSION**

U SHIPPERS GROUP INC.,

Complainant,

v.

MAERSK A/S dba MAERSK,

Respondent.

FMC Docket No. 22-22

JOINT MOTION TO MODIFY SCHEDULING ORDER

Pursuant to 46 C.F.R. §502.71, Complainant U SHIPPERS GROUP INC., (“U Shippers”), and Respondents MAERSK A/S dba MAERSK (“Maersk”) (collectively referred to as the “Parties”), by their respective undersigned counsel, hereby submit this joint motion to modify the scheduling order dated November 3, 2022 (“Scheduling Order”).

The Scheduling Order called for initial discovery requests to be served by November 2, 2022 and for discovery responses to be served December 2, 2022. The Parties served their respective discovery requests on time. However, due to the volume of documents to be produced, the Thanksgiving holiday weekend, and some technical issues, neither party was in a position to produce complete discovery responses on December 2. Counsel for the each of the Parties consulted in good faith and agreed on a mutually acceptable approach to producing responsive documents. Production of documents is now or will presently be completed, with each party producing approximately 30,000 documents. (The high volume of documents is due to the nature of the issues in the case and the fact that U Shippers is an association consisting of

numerous members, which results in a large number of responsive communications to be produced.)

Although neither party has completed its review of the other party's production, at this time it appears unlikely that there will be a need for rulings on discovery disputes. However, because of the time required to complete the voluminous document production, and now to review that production in preparation for depositions, the Parties will not be able to identify expert witnesses and produce expert witnesses reports by January 19, nor will they be able to complete discovery by February 23. Thus, despite the diligent and cooperative efforts of the Parties and their counsel, the Parties will not be able to comply with the Scheduling Order necessitated by the inadequate time for the completion of discovery contemplated by the Commission's regulations.

In light of the foregoing, and in order to ensure an efficient and just resolution to this action, the Parties assert that a modification to the Scheduling Order is justified. Scheduling orders may be modified "upon a showing of good cause." Fed. R. Civ. P. 16(b); *see also Sosa v. Airprint Systems, Inc.*, 133 F.3d 1417, 1418 (11th Cir. 1998). "[D]iligence is the key to satisfying the good cause requirement." *De Varona v. Discount Auto Parts, LLC*, 285 F.R.D. 671, 672-73 (S.D. Fla. 2012) (citing *Sosa*, 133 F.3d at 1419).

The Parties contend that there exists good cause for modifying the Scheduling Order and respectfully request that the presiding officer extend the deadlines currently set forth in the Scheduling Order by approximately 30 days, as shown in the table below:

Event	Current Deadline	Proposed New Deadline
Disclosure of initial expert reports	January 19, 2023	March 17, 2023
Joint Status Report	January 26, 2023	March 24, 2023
Disclosure of rebuttal expert reports	February 2, 2023	April 3, 2023
Close of discovery	February 23, 2023	May 1, 2023
Complainant's brief, findings of fact, and appendix	March 23, 2023	May 31, 2023
Respondents' brief, findings of fact, appendix, and response	April 20, 2023	June 30, 2023
Complainant's reply brief	May 4, 2023	July 14, 2023

Respectfully submitted,

/s/Efrem Schwalb

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